

P.Mohandas Panicker vs K.K.Dakshayani on 19 October, 2005

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE ANTONY DOMINIC
&
THE HONOURABLE MR. JUSTICE P.D.RAJAN

FRIDAY,THE 20TH DAY OF DECEMBER 2013/29TH AGRAHAYANA, 1935

Mat.Appeal.No. 15 of 2006 ()

AGAINST THE ORDER IN OP 112/2002 of FAMILY COURT,KOZHIKODE
DATED 19-10-2005

APPELANT/PETITIONER:

P.MOHANDAS PANICKER, AGED 50 YEARS,
S/O.GOVINDA PANICKER, PARAMBIL SREEMOD VILLA
CHEVAYUR AMSOM AND DESOM, KOZHIKODE TALUK.

BY ADVS.SRI.MANJERI SUNDERRAJ
SMT.SUSAN JACOB
SRI.B.PREMNATH (E)

RESPONDENT(S):

1. K.K.DAKSHAYANI, AGED 45 YEARS,
D/O.RAMANKUTTY PANICKER, KALARIKANDY VEEDU
P.O.KODUVALLY, KODUVALLY AMSOM AND DESOM
KOZHIKODE TALUK.
2. RATHNAKARAN NAIR, AGED 35 YEARS,
PUTHALATHKANDY HOUSE, P.O.PUTUPADI, PUTUPADI AMSOM
MALAPPURAM DESOM, KOZHIKODE TALUK.

R,R1 BY ADV. SRI.P.V.KUNHIKRISHNAN

THIS MATRIMONIAL APPEAL HAVING BEEN FINALLY HEARD ON 20-12-2013,
ALONG WITH RPFC. 206/2005, THE COURT ON THE SAME DAY DELIVERED
THE FOLLOWING:

acd

Mat.Appeal.No. 15 of 2006

APPENDIX

APPELLANT'S EXHIBITS

ANNEX-1: IMPUGNED ORDER DATED 19/10/2005 IN O.P.NO.112/2002
FAMILY COURT, KOZHIKODE (CERTIFIED CARBON COPY
OBTAINED ON 02/11/2005).

TRUE COPY

PA TO JUDGE.

acd

"C.R."

ANTONY DOMINIC & P.D. RAJAN, JJ.

Mat. Appeal No.15/2006 &
R.P. (FC)No.206/2005

Dated this the 20th day of December, 2013

JUDGMENT

P.D. RAJAN,J.

This appeal is filed against the order passed by the Family Court, Kozhikode in O.P.No.112/2002 which was preferred by the appellant/husband on the ground of adultery as provided u/s 13 (1)(i) of the Hindu Marriage Act 1956 seeking divorce against the 1st respondent, his wife.

2. The appellant married the 1st respondent on 14.12.1974 as per the Hindu customary rites and thereafter, they lived together as husband and wife. In the wedlock, two children were born to them and both of them have attained majority. According to the appellant, while they were residing in the family house, the 1st respondent used to pick up quarrels with him for silly reasons and used to behave indifferently. She used to create problems in the house and without any provocation, cry loudly to attract the attention of neighbours. For one reason or the other, she frequently visited her house and stayed there. Subsequently, they shifted their residence to a new house. After the marriage of her first daughter, the 1st respondent used to visit her family house at Koduvally and stayed there for several days. Such indifferent behaviour and the telephone calls during that period

were noticed by the appellant. From this, it was learnt that a man used to make phone calls to her. He was later identified as one Manoj. When the appellant enquired about this, she informed him that she had some money transaction with Manoj, and that the phone calls were made in that connection. Further enquiry made by the appellant revealed that the aforesaid Manoj was a frequent visitor to the family house of the 1st respondent at Koduvally and that they maintained an intimacy. Knowing this, his son, Sreejith warned her not to continue this conduct and relationship and the 1st respondent assured him that she would mend her ways.

3. Subsequently, she developed an intimacy with the 2nd respondent and on 19.8.2001 at 10.30 p.m, the 2nd respondent was found in the bed room of the 1st respondent. According to the appellant, while he was sleeping in another room, on hearing some noise, he came to the backside of the bed room of the 1st respondent and saw him inside and that realising the presence of the appellant, the 2nd respondent ran away. While escaping from there, the neighbours caught him red handed. The second incident was on 5.11.2001 when the appellant and his son returned from the shop, they found the front door of the house closed when they looked in to the bed room through the window respondents 1 and 2 were found naked, and indulging in sexual intercourse and that on seeing them, the 2nd respondent escaped from there. In these circumstances, the appellant contended that the 1st respondent is living in adultery and he prayed for dissolving his marriage with the 1st respondent on the ground of adultery.

4. In the Family Court, the 1st respondent wife resisted the petition by filing a written statement denying the allegation of adultery with the 2nd respondent. She admitted that after the marriage, the appellant and the 2nd respondent lived together, but, contended that she did not create any problems in the marital life. It was contended that after the marriage, for a period of eight years, they lived together at tharavadu house and thereafter they shifted to the new residence. While residing in the tharavadu house, the appellant treated her with cruelty and in such circumstances, they shifted to the new house. She denied the allegation that she had illicit connection with Manoj or Retnakaran Nair and according to her, they were total strangers to her. According to her, after consuming liquor, raising false allegations, he used to assault her frequently. He is an astrologer, getting more than Rs.15,000/- per month and he used to mingle with different kinds of people and was leading a wayward life. On 5.11.2001 at 11.30 a.m., the appellant assaulted the 1st respondent and driven her out of the house and thereupon she left the house with her brother at 10 p.m. on the same day. Hence, she prayed to dismiss the petition.

5. The 2nd respondent filed a counter and contended that he had no connection with the 1st respondent and the alleged incidents of 19.8.2001 and 5.11.2001, had no connection with him. According to him, the allegations in the petition were baseless and he also prayed to dismiss the petition.

6. R.P.(FC)No.206/2005 is filed against the order in M.C.No.146/2003, which was filed by the wife against the appellant husband, claiming maintenance. Her case was that the appellant was getting more than Rs.15,000/- per month from his profession and Rs.3,000/- from his landed properties. She had no income of her own and she required Rs.1500/- per month for her maintenance. The appellant husband strongly resisted the above contentions and argued that the respondent is having

sufficient income of her own for her livelihood and that she was not entitled to get any amount for her maintenance. He also alleged that she was living in adultery and that an adulterous wife is not entitled to get maintenance from her husband and he prayed to dismiss this claim also.

7. In the trial Court, the appellant and the respondent adduced both oral and documentary evidence. The evidence consists of oral testimony of Pws 1 to 3 and RW1 and documentary evidence of Exts.B1 to B5. The trial Court dismissed O.P.No.112/2002 and partly allowed the M.C. Aggrieved by that order, the appellant husband preferred Mat. Appeal No.15/2006 and RPFC 206 of 2005.

8. The main ground urged by the learned counsel for the appellant was that it was proved that the 1st respondent voluntarily had sexual intercourse with another man and that therefore, she betrayed the husband. The evidence of Pws 1 to 3 showed that the 1st respondent engaged in sexual intercourse with a stranger and the finding of the court below on this issue is incorrect, illegal and improper. It was complained that the direct evidence on adultery was not properly appreciated by the trial court and that when direct evidence with regard to adultery is adduced, the Court cannot ignore such evidence on baseless and untenable grounds. According to the appellant, the evidence of PW3 throws light upon the issue of adultery and the 1st respondent was living separately without any just and reasonable cause and that her explanations are not satisfactory.

9. There was no appearance for the respondents.

10. The issues that arise for consideration in Mat Appeal No.15 of 2006 is whether the 1st respondent voluntarily had sexual intercourse with any person other than her spouse and whether the appellant is entitled for a decree of divorce under Section 13(1) (1) of the Hindu Marriage Act?

11. According to Section 13(1) (i) of the Hindu Marriage Act, 1955, any marriage solemnized, whether before or after commencement of this Act, may, on a petition presented by either the husband or wife, be dissolved by a decree of divorce on the ground that after the solemnization of the marriage, the other party voluntarily had sexual intercourse with any person other than her or his spouse. In this case, the appellant married the 1st respondent as per the customary rites and while residing together she is alleged to have led an adulterous life. We examined the oral evidence adduced by PW1 and his son, PW3 in support of this allegation. According to PW1, while he was residing with his wife in the family house, the 1st respondent behaved indifferently and she visited her house and stayed there without any reason. On several occasions, she quarrelled with him without any reason and the appellant adjusted to all these misbehaviour to outrage the family. Subsequently, they shifted their residence to a new house and there also, the 1st respondent continued her earlier conduct and behaviour and started mingling with other male persons. After his daughter's marriage, the 1st respondent stayed in her house at Koduvally for several days where, she came in contact with one Manoj from Thamarassery. One day their son, PW3, happened to attend a phone call and came to know that Manoj was calling his mother and realising this, he warned her. In spite of this warning, she continued her relationship with Manoj. On enquiry the appellant found that Manoj was a frequent visitor to the 1st respondent's house at Koduvally. When the appellant enquired about the visit, she replied that there was some money transaction with him. Another incident narrated by PW1, was on 19.8.2001. On that day at 10.30 p.m., while he was watching T.V.,

he told the 1st respondent to reduce the volume of the T.V. and at that time, she switched it off and went to sleep in a separate bedroom and locked the door from inside. After some time, on hearing some sound from inside the room, the appellant went to the back side of the house and looked into the room. At that time, realising the presence of the appellant, somebody ran away from the 1st respondent's bedroom. On hearing the hue and cry of the appellant, the neighbours gathered there caught hold of the 2nd respondent and on interrogation, the 2nd respondent confessed his illicit connection with the 1st respondent.

12. The appellant also narrated another incident, which happened on 5.11.2001. On that day, along with his son, he went to the grocery shop, which is 1 km away from his house for purchase. At 11.30 a.m., they returned home and found the front door closed. Both of them went to the backside of the house and peeped into the bed room through the window, when they found respondents 1 and 2 naked and in a compromising position indulging in sex. On seeing the appellant, the 2nd respondent ran away from there through the backside of the house. This incident was witnessed by one Suresh and Girish, neighbours of the appellant. Pws 2 and 3 supported the incident and nothing has been brought out in cross examination to discredit this direct evidence. But, the trial Court discarded the evidence of PW1 to 3 without discussing its quality or acceptability and we do not find any justification in discarding the direct oral testimony of PW1 to PW3.

13. The 1st respondent denied all the allegations against her. When she was examined as RW1, she contended that she had no connection with the 2nd respondent or Manoj. The 1st respondent deposed that the above allegations were raised by the appellant with ulterior motive, after transferring his property in the name of his daughter. She also stated that the two incidents alleged were also false and that she had never indulged in any sexual intercourse with the 2nd respondent or Manoj. Her case is that the appellant is an Astrologer by profession and that while residing together, he was in the habit of torturing her brutally after consuming liquor. RW1 admitted that her marriage was a love marriage and according to her, the appellant was always interested in his personal happiness. She alleged that whenever RW1 informed about her sickness and inconvenience, the appellant became violent and treated her in an inhuman way. During menstrual periods, when she had severe bleeding, at that time also, the appellant did not care to take her to the hospital and that even in spite of medical advice, he did not give proper medical help to her.

14. Adultery is one of the grounds available for divorce under all personal laws. In Section 13(1)(i) of the Hindu Marriage Act, it is provided thus: "has, after the solemnization of the marriage, had voluntary sexual intercourse with any person other than his or her spouse;" It is therefore clear that husband or wife can sue for divorce against the other on the ground of adultery and the essential ingredient of adultery is sexual intercourse, which presupposes a carnal union between a man and woman. It means sexual intercourse between a married person and a person of the opposite sex, not being the other spouse whether married or unmarried. The second essential element is that the act of sexual intercourse must be consensual. This means that if the wife lacks the mental capacity to give consent or was under the influence of any drug or liquor and any sexual act is performed believing that the opposite party is her spouse, it will not amount to adultery. The Apex Court in the decision of Earnist John White v. Kathleen Olive White and others [AIR 1958 SC 441], in paragraph 10 & 13 held thus:

"10. The appellant contends that the only conclusion to be arrived at upon the evidence taken as a whole is that the wife was guilty of adultery with respondent

2. In other words the evidence was in quality and quantity such that it satisfies the requirements of S.14 of the Act which provides:

'S.14 "In case the Court is satisfied on the evidence that the case of the petitioner has been proved...."

The important words requiring consideration are 'satisfied on the evidence'. These words imply that the duty of the Court is to pronounce a decree if satisfied that the case for the petitioner has been proved but dismiss the petition if not so satisfied. In S.4 of the English Act, Matrimonial Causes Act of 1937 the same words occur and it has been there held that the evidence must be clear and satisfactory beyond the mere balance of probabilities and conclusive in the sense that it will satisfy what Sir William Scott described in *Loveden v. Loveden* (1810) 161 E.R. 648 (D) as "the guarded discretion of a reasonable and just man". Lord Mac Dermott referring to the description of Sir William Scott said in *Preston Jones v. Preston Jones*, 1951 A.C. 391 at p.417(E):

"The jurisdiction in divorce involves the status of the parties and the public interest requires that the marriage bond shall not be set aside lightly or without strict enquiry. The terms of the statute recognise this plainly, and I think it would be quite out of keeping with the anxious nature of its provisions to hold that the Court might be "satisfied" in respect of a ground for dissolution, with something less than proof beyond reasonable doubt. I should, perhaps, add that I do not base my conclusions as to the appropriate standard of proof on any analogy drawn from the criminal law. I do not think it is possible to say, at any rate since the decision of this House in *Mordaunt v. Moncrelffe*, (1874)30LT 649 (F), that the two jurisdictions are other than distinct. The true reason, as it seems to me, why both accept the same general standard- proof beyond reasonable doubt-lies not in any analogy but in the gravity and public importance of the issue with which each is concerned."

13. In a suit based on a matrimonial offence it is not necessary and it is indeed rarely possible to prove the issue by any direct evidence for in very few cases can such proof be obtainable. The question to be decided in the present case therefore, is whether on the evidence which has been led the Court can be satisfied beyond reasonable doubt that adultery was committed by the wife with respondent No.2 at Patna between July 25, 1950 and July 28, 1950. In our opinion the facts proved are quantitatively and qualitatively sufficient to satisfy the test laid down by the House of Lords in *Preston Jones* case (E) (supra). The wife went to Patna and stayed with respondent No.2 under an assumed name. They occupied the same room i.e., room No.10. There was undoubtedly a guilty inclination and passion indicated by the conduct of respondent No.2 and there is no contrary indication as to the inclination and conduct of the wife. On the other hand her conduct as shown by the evidence is so entirely consistent with her guilt as to justify the conclusion of her having committed adultery with respondent No.2 and therefore the finding of the Courts below as to the guilt should be reversed."

In the light of the above legal principles, it should be held that in cases where adultery is alleged, the petitioner (here the appellant) has to prove his case and the Court should be "satisfied" on the grounds of dissolution. Here, the oral testimony tendered by PWs 1 to 3 is reliable and acceptable and we do not find any reason for its rejection. It is very difficult to get direct evidence in cases of adultery. In *Bipin v. Prabhabate* (AIR 1957 SC 176), Apex Court settled the nature of evidence and "Standard of Proof" required in matrimonial cases and adopted the standard "beyond reasonable doubt". But in its later decision in *Earnist John White* [supra] it was observed that in cases of adultery the court should be "satisfied on the evidence" that the case of the petitioner has been proved and that such was the nature of standard of proof.

15. The proof of adultery and burden of proof are frequently a confused one, while filing a case and introducing evidence. In earlier decisions apex court held that the rule of "proof beyond reasonable doubt" is the principle applied in criminal case, but in modern law, in matrimonial disputes, adultery can be proved by preponderance of probabilities. The law relating to "Standard of Proof" came up before the three Judge bench of the Apex Court in *Narayan Ganesh Dastane v. Sucheta Narayan Dastane* [AIR 1975 SC 1534] in which Supreme Court held that the normal rule which governs the civil proceeding is that it is proved by preponderance of probabilities.

"Normally this Court would not have gone into the evidence in second appeal. Section 100 of the C.P.C. Restricts the jurisdiction of the High Court in second appeal to questions of law or to substantial errors or defects in the procedure which might possibly have produced error or defect in the decision of the case upon merits. The High Court came to the conclusion that both the courts below had failed to apply the correct principles of law in determining the issue of cruelty. Accordingly the High Court proceeded to consider evidence for itself. Under s.103 C.P.C. the High Court can determine any issue of fact if the evidence on the records is sufficient but if the High Court takes upon itself the duty of determining an issue of fact, its powers to appreciate evidence would be subject to the same restraining conditions to which the power of any court of facts is ordinarily subject. The limits of that power are not wider for the reason that the evidence is being appreciated by the High Court and not by the District Court. While appreciating evidence, inferences may and have to be drawn but courts of facts have to remind themselves of the line that divides an inference from guess work. Normally this Court would have remanded the matter to the High Court for a fresh consideration of the evidence but since the proceedings were pending for 13 years the Court itself went into the evidence. The burden of proof in a matrimonial petition must lie on the petitioner because ordinarily the burden lies on the party which affirms a fact, not on the party which denied it. This principle accords with commonsense, as it is much easier to prove a positive than a negative. The petitioner must, therefore, prove that the respondents had treated him with cruelty within the meaning of r.10(1)(b) of the Act. But the High Court was wrong in holding that the petitioner must prove his case beyond a reasonable doubt. The normal rule which governs civil proceedings is that a fact is said to be established if it is proved by preponderance of probabilities. Under S.3 of the Evidence Act, a fact is said to be proved when the court either believes it to exist or if conspires its existence

so probable that a prudent man ought in the circumstances, to act upon the supposition that it exists. The first step in this process to fix the probabilities, the second to weigh them. The impossible is weeded out in the first stage, the improbable in the second. Within the wide range, of probabilities the Court has often a difficult choice to make but it is this choice which ultimately determines where the preponderance of probabilities lies. Important issues like the status of parties demand closer scrutiny than those like the loan on a promissory note. Proof beyond reasonable doubt is proof by a higher standard which generally governs criminal trials or trials involving enquiries into issues of quasi-criminal nature. It is wrong to import such considerations in trials of a purely civil nature. Neither s.10 nor s.23 of the Hindu Marriage Act requires that the petitioner must prove his case beyond reasonable doubt S.23 confers on the court the power to pass a decree if it is satisfied on the matters mentioned in Clauses (a) to (e) of that Section. Considering that proceedings under the Act are essentially of a civil nature the word 'satisfied' must mean satisfied on a preponderance of probabilities and not satisfied beyond a reasonable doubt. The society has a stake in the institution of marriage and therefore, the erring spouse is treated not as a mere defaulter but as an offender. But this social philosophy, though it may have a bearing on the need to have the clearest proof of an allegation before it is accepted as a ground for the dissolution of marriage, it has no bearing on the standard of proof in matrimonial cases."

Calcutta High Court in Dr. Saroj Kumar Sen v. Dr. Kalyan Kanta Ray and another [AIR 1989 CALCUTTA 374], in paragraphs 9 held thus:

"9. At the outset let us deal with the point of law. Halsbury's Laws of England, 4th Edition, Vol.XIII, para 563 says that adultery must be proved to the satisfaction of the Court, that is on a preponderance of probability depends on the subject matter and in proportion as the offence is grave, so ought the proof to be clear. The divorce is a civil proceeding and the analogies of criminal law are not apt. Now, this is not a criminal case. In a criminal case, there is a presumption of innocence in the accused's favour. In spite of the provisions of Section 3 of the Indian Evidence Act, such presumption of innocence of an accused has been imported into the Indian Criminal Law from the English law. In the well-known case of Woolmington v. Director of Public Prosecutions reported in 1935 AC 462, it has been stated that throughout the web of the English Criminal Law one golden thread is always to be seen, that is the duty of the prosecution to prove the prisoner's guilt. But there is no such law in regard to our civil proceedings. Section 3 of the Indian Evidence Act will clinch the issue on this for it says when a fact is proved, disproved and not proved. That Act nowhere says that a civil Proceeding has to be proved beyond reasonable doubt. Of course, relying on the case of Preston Jones v. Preston Jones reported in (1951) 1 ALL ER 124, it has been stated in the case of White v. White in AIR 1958 SC 441 that in cases of adultery, the petitioner must prove his case to the hilt. In England previously a view was taken that such cases must be proved beyond reasonable doubt. Then in the case of Blyth v. Blyth (1996 AC 643) (supra) the House of Lords has held by a

majority that regarding divorce or the bars to divorce like connivance or condonation, like any other civil case, the petitioner's case must be proved by a preponderance of probability. In the case of *Dastane v. Dastane* AIR 1975 SC 1534 at p. 1540, this aspect of standard of proof was discussed by the Supreme Court and it was held that such cases need not be proved to the hilt. In these types of cases, this is the latest position of law in England and in India as well. Consequently, the views expressed in the cases of *Sachindra v. Nilima* (AIR 1970 Cal 38) (supra) and of *Subrata v. Dipti* (AIR 1974 Cal 61) (supra) are no longer good law. Therefore, it is now necessary to see, if the case of adultery has been proved and whether the test of preponderance of probability satisfied.

16. The three Judge Bench of the Apex Court in *Jayachandra v. Aneel Kaur* [AIR 2005 SC 534]) explained the concept of standard of proof as follows:-

"Standard of proof:- The concept of proof beyond the shadow of doubt can be applied only to criminal trial. It cannot be applied to civil disputes and certainly not to matrimonial disputes concerning delicate personal relationship between husband and wife."

The principles laid down in the above decisions reiterate that in civil cases, preponderance of probabilities is the standard to be adopted to prove the case. No doubt, matrimonial cases are civil proceedings and the Court can act upon preponderance of probabilities, especially in adultery cases, since it is difficult to get direct evidence.

17. In the above facts and circumstances, we reject the contention put forwarded by the 1st respondent wife and accept the evidence of the appellant. The preponderance of probabilities are in favour of the appellant. Hence we hold that the case of the appellant that on 5.11.2001 the 1st respondent committed adultery with the 2nd respondent after 10.30 a.m. in the bed room of the appellant's house stands proved and we find no collusion between the parties. When adultery is proved and established a decree of dissolution of marriage should be granted. Therefore, the judgment and decree passed by the Family Court are to be set aside.

18. Now we shall deal with R.P.(FC) No.206/2005. The evidence of Pws1 to 3, discussed above proves that the 1st respondent is living in adultery. When she is living in adultery, she is not entitled to get any amount towards maintenance. Section 125(4) of Cr.P.C. reads as follows:

" 125. Order for maintenance of wives, children and parents.-

xx xx xx (4) No wife shall be entitled to receive an allowance for the maintenance or the interim maintenance and expenses of proceeding, as the case may be, from her husband under this section if she is living in adultery, or if, without any sufficient reason, she refuses to live with her husband, or if they are living separately by mutual consent."

Here adultery is proved and therefore she is not entitled to get any amount as maintenance.

19. In the result, Mat. Appeal No.15/2006 and R.P.(FC) No.206/2005 are disposed of as follows:

- a) The order passed by the Family Court, Kozhikode in O.P.No.112/2002 is set aside.
- b) The marriage solemnized between the appellant and 1st respondent is dissolved by a decree of divorce u/s. 13(1)(i) of the Hindu Marriage Act 1955 with effect from today.
- c) The order of maintenance granted in M.C.146 of 2003 is hereby set aside.

No cost ordered.

ANTONY DOMINIC, JUDGE P.D. RAJAN, JUDGE.

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